



## CHAPTER xxxi.

An Act to empower the urban district council of Ramsbottom to provide and work omnibuses within and beyond their district to make further provision in regard to the railless traction undertaking of the Council and for other purposes.

A.D. 1926.

[30th June 1926.]

**W**HEREAS the urban district of Ramsbottom in the county palatine of Lancaster (in this Act referred to as "the district") is an urban district within the meaning of the Local Government Act 1894 and is under the management and control of the urban district council of Ramsbottom (in this Act referred to as "the Council"):

And whereas by the Ramsbottom Urban District Railless Traction Act 1912 (hereinafter referred to as "the Act of 1912") the Council were empowered to construct a trolley car system and to work trolley cars by electrical energy over certain routes in the district and in connection with such trolley car system to provide and work omnibuses within the district:

And whereas it is expedient that the powers of the Council in connection with such trolley car system should be extended as in this Act provided and that the Council should be empowered to provide and work omnibuses within any part of their district and also beyond their district:

And whereas it is expedient that further borrowing powers for the purposes of this Act and for the other



[Ch. xxxi.]      *Ramsbottom Urban* [16 & 17 GEO. 5.]  
*District Council Act, 1926.*

A.D. 1926. — purposes hereinafter referred to should be conferred upon the Council :

And whereas it is expedient that the other provisions contained in this Act be enacted :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas estimates have been prepared by the Council for the purposes hereinafter mentioned and such estimates are as follows :—

|                                                                                                                                          | £      |
|------------------------------------------------------------------------------------------------------------------------------------------|--------|
| For the provision and equipment of omnibuses - - - - -                                                                                   | 18,450 |
| For the purchase of lands for the purposes of the omnibus undertaking of the Council and for the erection of buildings thereon - - - - - | 5,000  |

And whereas the several works included in such estimates are permanent works and it is expedient that the cost thereof should be spread over a term of years :

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

Short and collective titles.

1.—(1) This Act may be cited as the Ramsbottom Urban District Council Act 1926.

(2) The Ramsbottom Urban District Council Tramways Order 1903 confirmed by the Tramways Orders Confirmation (No. 2) Act 1903 and the Ramsbottom Urban District Railless Traction Act 1912 and this Act may be cited together as the Ramsbottom Urban District Council Acts 1903 to 1926.

Incorporation of Lands Clauses Acts.

2. The Lands Clauses Acts except section 127 of the Lands Clauses Consolidation Act 1845 and except the provisions with respect to the taking of lands otherwise than by agreement (so far as the same are applicable



for the purposes of and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act. A.D. 1926. —

**3.**—(1) In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith and by the Public Health Act 1875 have the same respective meanings unless there be something in the subject or context repugnant to such construction. Interpretation.

(2) In this Act unless the subject or context otherwise requires—

“The district” means the urban district of Ramsbottom;

“The Council” means the urban district council of the district;

“The district fund” and “the general district rate” mean respectively the district fund and the general district rate of the district;

“The Order of 1903” means the Ramsbottom Urban District Council Tramways Order 1903 confirmed by the Tramways Orders Confirmation (No. 2) Act 1903;

“The Act of 1912” means the Ramsbottom Urban District Railless Traction Act 1912;

“Road authority” means with reference to any road or part of a road over which any proposed omnibus service will pass the authority company or person charged with or liable to contribute to the maintenance of such road or part of a road;

“Statutory security” shall have the same meaning as that assigned to it by the Act of 1912;

“Statutory borrowing power” shall have the same meaning as that assigned to it by the Act of 1912;

“Revenues of the Council” shall have the same meaning as that assigned to it by the Act of 1912;

“Trolley car” shall have the same meaning as that assigned to it by the Act of 1912;



[Ch. xxxi.] *Ramsbottom Urban* [16 & 17 GEO. 5.]  
*District Council Act, 1926.*

A.D. 1926.

“Traction route” means any route along which the Council are for the time being authorised to run trolley cars or omnibuses;

“Traction undertaking” means and includes the railless traction undertaking authorised by the Act of 1912 and the omnibus undertaking.

Power to  
provide and  
run  
omnibuses.

4.—(1) Subject to the provisions of this Act the Council may in addition to and without prejudice to the exercise of their powers under section 38 (Power to provide omnibuses) of the Act of 1912 provide and maintain (but shall not manufacture) and may run omnibuses within the district and with the consent of the Minister of Transport and of the local authority of the district along any route without the district. Provided that the consent of a local authority shall not be unreasonably withheld and any question whether or not such consent has been unreasonably withheld shall be determined by the Minister of Transport.

(2) In the case of any application under the provisions of this section for the consent of the Minister of Transport the Council shall give notice in writing of their proposals to the road authority (where they are not also the local authority) and shall publish notice of such proposals in the London Gazette and in such other manner as the Minister of Transport shall direct stating the manner in which and the time within which any persons affected by such proposals may object thereto and if any objection shall be made by any such person or the consent of the local authority is withheld the Minister of Transport may direct an inquiry to be held.

(3) The Council may purchase by agreement take on lease and hold lands and buildings and may erect on any lands acquired by them omnibus carriage and motor houses buildings and sheds and may provide such plant appliances and conveniences as may be requisite or expedient for the establishment running equipment maintenance and repair of such omnibuses but the Council shall not create or permit any nuisance on any lands upon which they erect any such houses buildings or sheds.

(4) Every omnibus moved by electrical power shall be so equipped and worked as to prevent any interference with telegraphic communication by means of any telegraphs of the Postmaster-General.



(5) The Council shall perform in respect of the omnibuses provided under this section such services in regard to the conveyance of mails as are prescribed by the Conveyance of Mails Act 1893 in the case of a tramway to which that Act applies. A.D. 1926.

(6) The provisions of sections 51 (Penalty on passengers practising frauds on the promoters) and 56 (Recovery of tolls penalties &c.) of the Tramways Act 1870 shall apply to and in relation to the omnibuses of the Council as if they were carriages used on tramways.

(7) (a) The Council may make byelaws for regulating the travelling in or upon their omnibuses provided under this section or under section 38 of the Act of 1912 and for the prevention of nuisances in or upon the same or in or against any premises held by the Council in connection therewith.

(b) Subsection (4) of the said section 38 of the Act of 1912 is hereby repealed.

5.—(1) (a) Before the Council commence to run omnibuses over any road or part of a road it shall be determined by agreement between the Council and the road authority (where they are not the Council) or failing agreement by the Minister of Transport whether it is necessary (in order to provide for the running under the powers of this Act of an omnibus service over any such road or part of a road) to adapt alter or reconstruct such road or part of a road or to strengthen any county bridge or district bridge and if so what sum of money (if any) per mile of road so to be adapted altered or reconstructed or what sum of money (if any) in respect of any such bridge shall be payable by the Council to the road authority by way of contribution towards the cost incurred in such adaptation alteration reconstruction or strengthening. Adaptation of roads.

(b) Within six months after the date upon which all questions to be agreed or determined in pursuance of paragraph (a) of this subsection have been so agreed or determined the Council shall give notice in writing to the road authority as to whether or not they intend to run omnibuses over the road or part of a road or bridge in question.

(c) If the Council give notice in writing to the road authority that they intend to run omnibuses over the road or part of a road or bridge in question and if it shall



A.D. 1926. have been agreed or determined that the Council are to make any payment to the road authority under the provisions of paragraph (a) of this subsection the Council shall on receipt of any certificate which may from time to time be issued by the engineer in charge of the work of adaptation alteration or reconstruction of such road or part of a road or of strengthening such bridge pay to the road authority such proportion of the total amount of the contribution agreed or determined to be payable by the Council as the amount so certified to have been expended upon such work bears to the total amount estimated to be expended by the road authority on such work. Provided that the aggregate amount to be so paid by the Council shall not exceed the amount of the contribution agreed or determined to be payable by them as aforesaid.

(d) Notwithstanding anything in this subsection the Council shall not be required to pay any sum in respect of any work towards or in respect of the adaptation alteration or reconstruction of any such road or part of a road or the strengthening of any bridge which is not executed within three years from the date on which the Council shall commence to run omnibuses over the road or part of a road to be adapted altered or reconstructed or over the bridge to be strengthened.

(e) Not more than one payment or (in the case of a payment by instalments in accordance with paragraph (c) of this subsection) one series of payments shall be made in respect of any such road or part of a road so adapted altered or reconstructed or of any such bridge so strengthened.

(f) For the purposes of this subsection the expression "county bridge" shall include every bridge maintainable by a county council and in respect of such bridge the county council shall be deemed to be the road authority and the expression "district bridge" shall include every bridge maintainable by a district council and in respect of such bridge the district council shall be deemed to be the road authority.

(2) Any payment made to a road authority under this section in respect of any main road retained by them under subsection (2) of section 11 of the Local Government Act 1888 or maintained by them under subsection (4) of that section shall be credited to the



county council in ascertaining the amount payable by them under either of the said subsections of the Local Government Act 1888. A.D. 1926.  
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(3) If any such adaptation alteration reconstruction or strengthening as aforesaid shall involve an alteration of any telegraphic line (as defined by the Telegraph Act 1878) belonging to or used by the Postmaster-General the enactments contained in section 7 of the Telegraph Act 1878 shall apply to any such alteration and the road authority shall be deemed to be "undertakers" within the meaning of the said Act.

(4) The road authority shall not under section 23 of the Highways and Locomotives (Amendment) Act 1878 as amended by section 12 of the Locomotives Act 1898 or otherwise make any claim against the Council in respect of extraordinary traffic by reason of the user of any highway by the omnibuses of the Council.

(5) An agreement under this section with respect to any main road maintained by a local authority at the expense of any county council shall not be made except with the concurrence of that county council.

6. Nothing in this Act shall impose any obligation upon or enlarge any obligation of any railway or canal company to strengthen adapt alter or reconstruct any bridge or road maintainable by them respectively. As to bridges &c. of railway and canal companies.

7.—(1) Subject to the provisions of this section the Council may demand and take for passengers passengers' luggage above twenty-eight pounds in weight and parcels carried on the omnibuses provided under the Act of 1912 and this Act fares and charges not exceeding such maximum fares and charges as may from time to time be approved by the Minister of Transport. Fares and charges.

Any application for a revision of such maximum fares or charges may be made by the Council or by the local authority of any district in which such omnibuses are run.

Before approving any maximum fares or charges or any revision thereof under this section the Minister of Transport may direct an inquiry to be held.

Where the Minister causes any such inquiry as aforesaid to be held all expenses incurred by the Minister in relation to that inquiry shall be paid as the Minister



A.D. 1926. — may by order direct either by the Council or by any of the parties on whose representation the inquiry is held or partly by the Council and partly by any of such parties and the Minister may certify the amount of the expenses so incurred and any sum so certified and directed by the Minister to be paid shall be a debt due to the Crown.

(2) Every passenger may take with him personal luggage not exceeding twenty-eight pounds in weight without extra charge but all such luggage shall be carried by hand and shall not occupy any part of a seat required for a passenger nor be of a form or description to annoy or inconvenience other passengers.

(3) The Council may if they think fit carry on the omnibuses passengers' luggage and small parcels not exceeding fifty-six pounds in weight and dogs in the care of passengers the charge for any such dog to be a sum not exceeding the fare payable by the passenger but they shall not carry any other goods or animals.

(4) The fares and charges for the time being authorised under the provisions of this Act shall be paid to such persons and in such manner as the Council may by notice annexed to the list of fares and charges appoint.

Working  
and other  
agreements.

8.—(1) The Council and any local authority empowered to run trolley cars or omnibuses in any borough or urban or rural district adjacent to the district or adjacent to any borough or urban or rural district in which any route over which the Council are for the time being empowered to run trolley cars or omnibuses is situate may enter into and carry into effect agreements for the working user management and maintenance of all or any of the trolley car or omnibus services which the contracting parties are empowered to provide subject to the provisions of the respective Acts under which such trolley car or omnibus services are authorised.

(2) The Council and any company body or person may enter into and carry into effect agreements for the working user management and maintenance subject to the provisions of this Act of any trolley car or omnibus services within the district or on any route over which the Council are for the time being empowered to run trolley cars or omnibuses.

(3) The Council and any such local authority company body or person as aforesaid may also enter into



and carry into effect agreements for all or any of the following purposes (that is to say):— A.D. 1926.

- (a) The working user management and maintenance of any trolley cars omnibuses lands depots buildings sheds and property provided in connection with any such trolley car or omnibus services as aforesaid by either of the contracting parties and the right to provide and use the same and to demand and take the fares and charges authorised in respect of such services;
- (b) The supply by any of the contracting parties under and during the continuance of any such agreement under this section of trolley cars omnibuses and conveniences in connection therewith necessary for the purposes of such agreement and the employment of officers and servants;
- (c) The interchange accommodation conveyance transmission and delivery of traffic arising on or coming from or destined for any trolley car or omnibus service of the contracting parties;
- (d) The payment collection and apportionment of the fares and charges and other receipts arising from any such trolley car or omnibus service as aforesaid.

(4) The Council shall not enter into or carry into effect any agreement under the provisions of this section in relation to any trolley car or omnibus service lands depots buildings sheds or property beyond the district otherwise than with the consent of the local authority of the district within which such trolley car or omnibus service lands depots buildings sheds or property are situate Provided that on complaint being made to the Minister of Transport that such consent is unreasonably withheld the Minister may if he thinks fit by order dispense with such consent.

9. The Council may on any traction route erect and maintain shelters or waiting rooms and gangways for the accommodation of passengers and may with the consent of the local authority and road authority (where other than the Council) use for that purpose portions of the public streets or roads. Shelters and waiting rooms.



A.D. 1926.

Cloak-rooms  
&c.

10.—(1) The Council may provide cloak-rooms and rooms or sheds for the storage of bicycles and other vehicles at any depot or building used by them in connection with their traction undertaking and at any places on any traction route and the Council may make charges for the use of such cloak-rooms rooms and sheds and for the deposit of articles and things and bicycles and other vehicles therein.

(2) The Council may use for the purpose of this section portions of the public streets or roads but only with the consent of the road authority and of the local authority of the district.

Power to  
reserve  
trolley cars  
and omni-  
buses for  
special  
purposes.

11.—(1) Notwithstanding anything contained in this or any other Act to the contrary the Council may on any occasion run and reserve trolley cars or omnibuses on any route on which the Council are for the time being authorised to run trolley cars or omnibuses for any special purpose which the Council may consider necessary or desirable Provided that such special trolley cars and omnibuses shall be distinguished from other trolley cars and omnibuses in such manner as the Council may direct and that during the running of such special trolley cars or omnibuses the Council shall maintain a reasonably sufficient ordinary service of trolley cars or omnibuses as the case may be.

(2) The Council may make byelaws and regulations for prohibiting the use of any such trolley cars or omnibuses by any persons other than those for whose conveyance the same are reserved.

(3) The restrictions contained in this or any other Act as to fares or charges for passengers shall not extend to any trolley cars or omnibuses run for such special services as aforesaid and in respect thereof the Council may demand and take such fares rates or charges as they shall think fit.

Through  
trolley cars  
and omni-  
buses.

12. The Council may run through trolley cars or omnibuses along any traction route and such trolley cars and omnibuses shall be distinguished from other trolley cars and omnibuses in such manner as may be directed by the Council and they may demand and take for every passenger by such trolley cars and omnibuses a fare or charge not exceeding the maximum fare or charge



authorised or chargeable for and in respect of the whole of such route or the whole of the portion thereof traversed by any such trolley car or omnibus Provided that during the running of such through trolley cars or omnibuses the Council shall maintain a reasonably sufficient ordinary service of trolley cars or omnibuses as the case may be. A.D. 1926.  
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**13.** The Council may appoint the stations and places from which the omnibuses of the Council shall start or at which they may stop for the purposes of taking up or setting down passengers and may fix the time during which such omnibuses shall be allowed to remain at any such place but any such appointment and fixing of time shall (as respects any station or place outside the district) be subject to the consent of the local authority of the district within which that station or place is appointed which consent shall not be unreasonably withheld and any question as to whether or not any such consent is unreasonably withheld shall be determined by the Minister of Transport. Council may appoint stopping and starting places.

**14.** The Council may appoint stages upon any of their railless traction routes each of not less than half a mile in length and may demand and take for every passenger travelling upon the trolley cars including every expense incidental to the conveyance of such passenger such reasonable fares rates or charges not exceeding twopence for each two stages (or portion of that distance) travelled and for this purpose the fraction of a stage shall be deemed to be a stage. Power to appoint stages.

**15.—(1)** The Council may attach to any lamp-post pole standard or other similar erection erected on or in the highway on or near to any traction route signs or directions indicating the position of stopping places for trolley cars and omnibuses Provided that in cases where the Council are not the owners of such lamp-post pole standard or similar erection they shall give notice in writing of their intention to attach thereto any such sign or direction and shall make compensation to the owner for any damage or injury occasioned to such lamp-post pole standard or similar erection by such attachment and the Council shall indemnify the said owner against any claim for damage occasioned to any person or property by or by reason of such attachment. Attachment of signs indicating stopping places to lamp-posts &c.



[Ch. xxxi.] *Ramsbottom Urban* [16 & 17 GEO. 5.]  
*District Council Act, 1926.*

A.D. 1926.

(2) Nothing in this section shall be deemed to require the owner to retain any such lamp-post pole standard or similar erection when no longer required for his purposes.

(3) The Council shall not attach any such sign or direction to any pole post or standard belonging to the Postmaster-General except with his consent in writing or belonging to any local authority except with the consent of the authority in writing.

(4) The Council shall not attach any such sign or direction to any lamp-post pole standard or any similar erection belonging to a railway company without the consent of such company in writing.

Lost  
property.

16. Any property found in any trolley car or omnibus of the Council or in any shelter or waiting room in connection with the trolley cars or omnibuses of the Council shall forthwith be taken to a place to be appointed for the purpose by the Council and if the same be not claimed within six months after the finding thereof it may be sold as unclaimed property by public auction after notice by advertisement in one or more local newspapers once in each of two successive weeks and the proceeds thereof carried to the revenue account of the traction undertaking.

Penalty for  
malicious  
damage.

17. If any person wilfully and unlawfully does or causes to be done with respect to any trolley car or omnibus of the Council anything which is calculated to obstruct or interfere with the working thereof or to cause injury to any person he shall (without prejudice to any proceedings by way of indictment or otherwise to which he may be subject) be guilty of an offence punishable on summary conviction and shall be liable to a penalty not exceeding twenty pounds.

Amendment  
of Articles  
31 and 34 of  
Order of  
1903.

18.—(1) Article 31 (Passengers' fares) of the Order of 1903 as applied by the Act of 1912 to the trolley car system authorised by that Act shall be read and have effect as if the words "two pence" were inserted therein in lieu of the words "one penny."

(2) Article 34 (Cheap fares for labouring classes) of the Order of 1903 as applied by the Act of 1912 to the trolley car system authorised by that Act shall be read and have effect as if the words "one penny"



were inserted therein in lieu of the words "one half- penny." A.D. 1926.

**19.**—(1) Section 8 (Approval of trolley cars and overhead equipment by Board of Trade) of the Act of 1912 is hereby repealed and from and after the passing of this Act the trolley cars and the electrical equipment thereof used by the Council shall be of such form construction weight and dimensions as the Minister of Transport may approve and no trolley car shall be used by the Council which does not comply with the requirements of the Minister of Transport.

Approval of  
trolley cars  
and equip-  
ment by  
Minister of  
Transport.

(2) Before applying to the Minister of Transport for his approval of the weight of any trolley cars to be used upon any road which crosses a bridge belonging to and repairable by a railway company the Council shall give to such railway company notice of the weight of the trolley cars proposed to be used by them and the Minister of Transport shall consider and determine after such inquiry as he may think fit any objections which may be submitted by the railway company to him on the ground that the strength of such bridge is insufficient to carry trolley cars of such weight. Provided that notice of such objections shall be forwarded by such railway company to the Council at the same time as the same are submitted to the Minister of Transport.

**20.**—(1) The trolley vehicles authorised by the Act of 1912 shall not be deemed to be light locomotives within the meaning of the Locomotives on Highways Act 1896 or of the byelaws and regulations made thereunder nor shall they be deemed to be motor cars within the meaning of any provisions of the Motor Car Act 1903 (except subsection (1) of section 1 and the provisions necessary for enforcing that subsection section 6 and the provisions as amended by the Roads Act 1920 relating to the licensing and licences of drivers) and subject to those exceptions neither that Act nor the regulations made under that Act nor the enactments mentioned in the Schedule to the Locomotives on Highways Act 1896 nor the Locomotives Act 1898 shall apply to the said trolley vehicles.

Trolley  
vehicles not  
to be  
deemed  
light loco-  
motives or  
motor cars.

(2) The said trolley vehicles shall not be deemed to be omnibuses within the meaning of the Town Police Clauses Act 1889.



[Ch. xxxi.] *Ramsbottom Urban* [16 & 17 GEO. 5.]  
*District Council Act, 1926.*

A.D. 1926.

(3) Section 6 (Trolley vehicles not to be deemed light locomotives or motor cars) of the Act of 1912 is hereby repealed.

As to bye-laws &c.

21. All byelaws and regulations made by the Council under the provisions contained in this Act shall be made subject and according to the provisions of sections 46 and 47 of the Tramways Act 1870 and those provisions shall apply accordingly.

Omnibuses to form part of traction undertaking.

22. Subject to the provisions of this Act the omnibus undertaking authorised by this Act shall form part of the traction undertaking.

For protection of Rawtenstall Corporation.

23. For the protection of the mayor aldermen and burgesses of the borough of Rawtenstall the following provisions shall apply and have effect (that is to say):—

Notwithstanding anything contained in this Act none of the rights or powers thereby conferred shall be exercised within the borough of Rawtenstall without the consent in writing of the corporation of that borough first being obtained.

For protection of Haslingden Corporation.

24. For the protection of the mayor aldermen and burgesses of the borough of Haslingden the following provisions shall apply and have effect (that is to say):—

Notwithstanding anything contained in this Act none of the rights or powers thereby conferred shall be exercised within the borough of Haslingden without the consent in writing of the Corporation of that borough first being obtained.

For protection of London Midland and Scottish Railway Company.

25. The following provisions for the protection and benefit of the London Midland and Scottish Railway Company (in this section referred to as "the company") shall apply and have effect except in so far as may be otherwise agreed in writing between the Council and the company:—

Notwithstanding anything contained in this Act no shed shelter waiting room gangway cloak-room or room barrier or post shall be erected maintained or provided or starting or stopping place appointed nor shall the Council require persons waiting at any stopping place or any terminus to wait in any line or queue so as to cause interference with or to render less convenient the access to or exit from any station



depot or property belonging to the company nor shall any such shed shelter waiting room gangway cloak-room room barrier or post be erected maintained or provided on any bridge carrying any street or road over any railway or canal of the Company. A.D. 1926.

**26.** The Council shall keep the accounts in respect of the traction undertaking so as to show separately (so far as may be reasonably practicable) the receipts and expenditure in regard to (a) the trolley car system authorised by the Act of 1912 and (b) the omnibuses which the Council are empowered to provide and run under the Act of 1912 and this Act and in such accounts capital shall be distinguished from revenue. Accounts of traction undertaking.

**27.** The Council shall every year within three months after the closing of their financial year or such longer period as the Minister of Transport may allow furnish to the Minister of Transport a copy of the annual accounts of their traction undertaking. Accounts to be furnished to Minister of Transport.

**28.—**(1) The powers of running omnibuses under the provisions of this Act on any road or part of a road outside the district may at the expiration of ten years from the date on which such running commences and at the expiration of any subsequent period of ten years be determined by the Minister of Transport on the application of the local authority of the district in which such road or part of a road is situate upon such terms as the said Minister may determine. As to cesser of powers.

(2) Before issuing an order to determine the said powers the Minister of Transport shall hold a local inquiry at which opportunity shall be afforded to any person interested to object to the continuance or cesser of such powers.

**29.** If the Council do not within three years from the giving of the consent of the Minister of Transport to the running by the Council of omnibuses on any route without the district provide a service of omnibuses on such route or having provided shall discontinue any such service the Minister of Transport may on the application of any local authority within whose district the route or any part of the route is situate and after considering any representation which may be made on Provision in event of certain powers not being exercised within prescribed time.



[Ch. xxxi.]      *Ramsbottom Urban*    [16 & 17 GEO. 5.]  
*District Council Act, 1926.*

A.D. 1926.    —    behalf of the Council by order declare that unless a service of omnibuses be provided within such period as the Minister of Transport may by such order prescribe the powers of the Council under this Act in respect of the provision and running of omnibuses on such route or part of such route shall determine and if within the prescribed period such service be not provided as from the expiration of such period the powers of the Council under this Act in relation to the provision and running of omnibuses on such route or part of a route shall cease :

Provided that this section shall not apply or have effect in the event of the failure of the Council to provide a service of omnibuses on any route being due to strikes unforeseen accident or circumstances beyond the control of the Council.

Power to borrow.

**30.**—(1) The Council may from time to time independently of any other borrowing power borrow at interest for the purposes mentioned in the first column of the following table any sum not exceeding the respective sums mentioned in the second column thereof and in order to secure the repayment of any such sum and the payment of interest thereon they may mortgage or charge the revenue of the traction undertaking and the district fund and general district rate and they shall pay off all moneys so borrowed within the respective periods (each of which is in this Act referred to as “ the prescribed period ”) mentioned in the third column of the said table (namely) :—

| (1)<br>Purpose.                                                                                                                     | (2)<br>Amount.     | (3)<br>Period for Repayment.                      |
|-------------------------------------------------------------------------------------------------------------------------------------|--------------------|---------------------------------------------------|
| (a) For the provision of omnibuses                                                                                                  | £<br>18,450        | Eight years from the date or dates of borrowing.  |
| (b) For the purchase of lands for the purposes of the omnibus undertaking of the Council and for the erection of buildings thereon. | 5,000              | Thirty years from the date or dates of borrowing. |
| (c) For paying the costs charges and expenses of this Act as hereinafter defined.                                                   | The sum requisite. | Five years from the passing of this Act.          |



(2) (a) The Council may also with the consent of the Minister of Transport borrow such further money as may be necessary for any of the purposes of this Act. A.D. 1926.

(b) In order to secure the repayment of any money borrowed under this subsection and the payment of interest thereon the Council may mortgage or charge such revenue fund or rate as may be prescribed by the Minister of Transport.

(c) Any money borrowed under this subsection shall be repaid within such period as may be prescribed by the Minister of Transport.

(3) The provisions of this section prescribing the fund or rate which may be mortgaged or charged shall not limit the powers conferred upon the Council by section 54 (Power to use one form of mortgage for all purposes) of the Act of 1912.

**31.** Section 49 (Sinking fund) of the Act of 1912 is hereby amended by the substitution of "three pounds ten shillings per centum per annum or such other rate as may from time to time be sanctioned by the Minister of Health" for the words "three per centum per annum." Sinking fund payments.

**32.** The following provisions of the Act of 1912 shall subject to the provisions of this Act extend and apply to and in relation to the money borrowed under this Act as if those sections with the necessary modifications were set forth in this Act namely:— Application of financial provisions of Act of 1912.

- Section 41 (As to deficiency in receipts);
- Section 44 (Certain regulations of Public Health Act as to borrowing not to apply);
- Section 45 (Provisions as to mortgages);
- Section 46 (Appointment of receiver);
- Section 47 (Protection of lenders from inquiry);
- Section 48 (Mode of payment off of money borrowed);
- Section 49 (Sinking fund) as amended by this Act;
- Section 51 (Power to borrow under Local Loans Act 1875);
- Section 52 (Application of money borrowed); and
- Section 53 (Council not to regard trusts).



A.D. 1926.

Power to  
invest all  
sinking  
funds in  
statutory  
securities.

**33.** When under the provisions of any Act of Parliament or of any Order confirmed by or having the effect of an Act of Parliament whether passed confirmed or made before or after the passing of this Act the Council are empowered or required to form a sinking fund for the payment off of money borrowed or payable by them they may (in addition to any other powers for the time being vested in them) invest such sinking fund and the interest on the investments of such sinking fund in statutory securities.

Return to  
Minister of  
Health with  
respect to  
repayment  
of debt.

**34.**—(1) The clerk of the Council shall if and when he is requested by the Minister of Health so to do transmit to the said Minister a return showing the provision made for the repayment of any loans raised by the Council under any statutory borrowing power.

(2) The return shall show such particulars and shall be made up to such date and in such form as the said Minister may require and shall if so required by him be verified by statutory declaration of the said clerk or other the chief accounting officer of the Council and shall be transmitted within one month after the making of the request and in the event of his failing to make such return the said clerk or other officer shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by the said Minister in a court of summary jurisdiction and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of mandamus to be obtained by the said Minister out of the High Court.

(3) If it appears to the said Minister by such a return as aforesaid or otherwise that the Council have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by any enactment relating to the statutory borrowing power or by the said Minister in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purpose other than those authorised the said Minister may by order direct that the sum in such order mentioned not exceeding the amount in respect of which default has been made shall be paid or applied in the manner and



by the date in such order mentioned and the Council shall notify the said Minister as soon as the order is complied with and any such order shall be enforceable by writ of mandamus to be obtained by the said Minister out of the High Court. A.D. 1926.

(4) Section 50 (Return respecting sinking fund to Local Government Board) of the Act of 1912 is hereby repealed.

**35.**—(1) The Council shall apply all money received by them on account of revenue in respect of their omnibus undertaking in the manner and in the order following (that is to say):— Application of revenue of omnibus undertaking.

First In payment of the working and establishment expenses and cost of maintenance of the undertaking;

Secondly In payment of the interest on moneys borrowed by the Council for the purposes of the undertaking;

Thirdly In providing the requisite appropriations instalments or sinking fund payments in respect of moneys borrowed for the purposes of the undertaking;

Fourthly In providing a reserve fund (if the Council think fit) by setting aside such money as they think reasonable and investing the same and the resulting income thereof in statutory securities and accumulating the same at compound interest until the fund so formed amounts to the maximum reserve fund for the time being prescribed by the Council not exceeding a sum equal to two-fifths of the aggregate capital expenditure for the time being by the Council upon the undertaking which fund shall be applicable to answer any deficiency at any time happening in the income of the Council from the undertaking or to meeting any extraordinary claim or demand at any time arising against the Council in respect of the undertaking or for payment of the cost of renewing any part of the omnibuses and buildings and works connected therewith and so that if that fund be at any time reduced it



A.D. 1926.

may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens. Provided that resort may be had to the reserve fund under the foregoing provisions although such fund may not at the time have reached or may have been reduced below the prescribed maximum:

And the Council shall carry to the credit of the revenue of the traction undertaking so much of any balance remaining in any year of the income of the omnibus undertaking (including the interest on the reserve fund when such fund amounts to the prescribed maximum) as may in the opinion of the Council not be required for carrying on the omnibus undertaking and paying the current expenses connected therewith.

(2) Any deficiency in the revenue of the omnibus undertaking of the Council shall be made good out of the revenue for the year of the traction undertaking and if that is not sufficient out of the general district rate made within twelve months after such deficiency is ascertained.

Apportionment of items.

**36.** In all cases in which the Council keep separate accounts for separate purposes they shall so far as reasonably practicable apportion between those accounts or carry to either of them any receipts credits payments and liabilities which from time to time ought to be so apportioned or carried.

Consent of Council to be in writing.

**37.** All consents given by the Council under the provisions of this Act or of any local Act Provisional Order byelaw or regulation for the time being in force within the district shall be given in writing and unless otherwise prescribed shall be given under the hand of the said clerk or other duly authorised officer of the Council.

Application of certain further provisions of Act of 1912.

**38.** The following provisions of the Act of 1912 shall apply and have effect as if they were with the necessary alterations re-enacted in this Act namely:—

Section 57 (Consents not to be unreasonably withheld);

Section 59 (Audit of accounts);

Section 60 (Expenses of executing Act);



- Section 61 (Recovery of penalties); A.D. 1926.  
Section 62 (As to arbitration);  
Section 63 (Authentication and service of notices  
&c.); and  
Section 64 (Crown rights).

**39.** In respect of the exercise of any powers or duties conferred on the Minister of Transport or the giving by him of any consents under this Act or any existing Act or Order of the Council the provisions of Part I. of the Board of Trade Arbitrations &c. Act 1874 shall apply as if the Minister of Transport were referred to therein in lieu of the Board of Trade and as if in section 4 of that Act the words "under the seal of the Minister of Transport" were substituted for the words "by writing under the hand of the President or of one of the secretaries of the Board."

Inquiries by  
Minister of  
Transport.

**40.** The costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act shall after taxation by the taxing officer of the House of Lords or of the House of Commons be paid by the Council in the first instance out of the district fund and general district rate and ultimately may be paid out of money to be borrowed under the powers of this Act for that purpose.

Costs of Act.

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